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Provision of October 17, 2024

Register of provisions

No. 613 of October 17, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures of external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation on XX, Dr. XX and Dr. XX,

complaining, in particular, of alleged

violations of the regulations on the protection

of personal data, stated that the Regional

Technical Administrative Support Body (hereinafter, also "ESTAR" or "Body") had

published on its institutional website, within the framework of the selection procedure “XX”, an intermediate ranking containing the results of the technical professional interviews of each candidate through the indication, next to the names of the participants, of the terms “suitable” (with an attached specification of the score), “not suitable” or “absent”.

The complainants also stated that the Body had also transmitted to Dr. XX, in response to a request for access to documents pursuant to Law 241/1990, a file containing personal data relating to her and nonetheless named with the surname of the other complainant (“XX”).

2. The investigative activity.

Following the investigative checks with which the Authority verified that the ranking containing the personal data of the complainants was still actually retrievable online through

general search engines, the Body, in providing feedback to a specific request for information, declared in a note dated XX, in particular, that:

- “on January 23 of this year, the file was deleted and is no longer retrievable online”;
- “the file of the oral test result was, at the time, made accessible exclusively through access to the specific page of the selection and only until the publication of the ranking as the concluding act of the procedure, which absorbed every need for transparency regarding the results of the procedure, as established in 10 8-2018 RUS 'Publication methods on the website'”;
- “to allow, for archival purposes, to provide certain data regarding the establishment and relative publication of the document on the company's website (also in response to any access requests), the result file was kept within the CMS, but blocked from being viewed by users without administrative privileges at the time of the publication of the ranking. The Google search engine is not sensitive to this operation, so, being aware of the existence of that document and searching for it expressly, the indexing algorithm continued to return the result”;
- “it should be noted that the use of the file 'robots.txt' was not possible for two reasons: the file had to be public and indexed for the first part of its life cycle, and the WordPress CMS used does not allow for automated directory partitioning based on the visibility of an attachment”;
- regarding the measures adopted by the Body

to prevent the publication of unnecessary personal data concerning the purpose of publicity and transparency pursued in the context of public competitive procedures, the Body referred to certain considerations already expressed in communications sent via certified email previously to the complainants and, in copy knowledge, to the Authority, on XX and XX;

- regarding the transmission to Dr. XX, in the context of the response to the request for access to documents pursuant to Law 241/1990, of the file named "XX", "it is evident that this was a mere material error presumably caused by the fact that the applicants jointly signed their requests to Estar and

"therefore mutually aware of the request, it is noted that the contents transmitted were correctly referred to the individual candidates."

With a note dated XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified ESTAR, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the aforementioned Entity disseminated online the personal data of the complainants and other participants in the aforementioned procedure, by publishing on its official website the intermediate ranking containing the results of the related professional technical interviews, indicating, next to the names of each candidate, the terms "suitable" (with the attached specification of the score), "not suitable," or "absent," in the absence of an appropriate regulatory basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX, which did not request to be heard, a defensive memorandum was submitted, stating, in particular, that:

- "in relation to the contested publication of the results of the oral tests of the selection in question, Estar decided to do so at the end of the tests, indicating the names with the sole wording 'not suitable,' as a minimization of the data 'numerical score' attributed to candidates who did not pass the aforementioned test. No other personal and identifying data was disseminated";
- "the publication also took place within the specific selection page and remained there only until the publication of the final ranking as the concluding act of the procedure on XX, and was definitively made untraceable and unviewable on XX";
- "the test to which the non-suitability refers is an oral test which, as such, by regulatory provision, is characterized as being open to the public, in order to allow for the relevant control, in the perspective of maximum transparency, with the names of the candidates, the questions and the answers formulated, as well as the possible absence of those who decide to withdraw, being immediately known";
- "in this case, this Entity, limiting itself to publishing the names with the sole indication of 'not suitable,' without specifying the numerical score, did not intend to infringe the right to privacy of the candidates, who voluntarily decided to participate in a public competition";
- "the publication in question appears to have been carried out in compliance with the principles of proportionality and relevance of the processing of personal data, in accordance with the provisions of the Code for the protection of personal data and without exceeding the limitations that this expressly allows";
- "the necessary protection of individuals with respect to the processing and free circulation of personal

data does not preclude national legislation that imposes the collection and dissemination of information relating to the conduct of public competitions and specifically to the names of candidates with the respective results achieved, as it is necessary and appropriate for achieving the objectives of correct information for citizens and good management of personnel recruitment in public administrations";

- "the very principles of proportionality, relevance, and non-exceedance regarding the processing of personal data are the 'criteria' of reference for carrying out a 'balancing of compliance' between the protection of personal data and the effective application of the principles of publicity and transparency, referring not only, as a corollary of the democratic principle (Article 1 of the Constitution), to all relevant aspects of public and institutional life, but also, pursuant to Article 97 of the Constitution, to the proper functioning of the administration. The correct application of the aforementioned principles requires the administration to assess the existence of a real and concrete prejudice for the data subjects whose data has been disseminated, taking into account the necessity and interest in the disclosure of the data. In making this assessment, the administration is called upon to balance the benefit that the requested disclosure could bring and the sacrifice caused to the opposing interests at stake";

- "the publication of names with the sole indication of 'not suitable' does not appear to cause a concrete and reasonably foreseeable prejudice to the interests of the data subject. It is evident, in fact, how a non-suitability assessment merely referring to an oral test and contingent upon the only topics requested during the test cannot be said to be aimed at violating the candidate's privacy. In fact, the judgment of non-suitability is not minimally indicative of the multiple aspects of a personal nature regarding individual characteristics, such as overall professional preparation, culture, expressive abilities, or the character of the candidate";

- "the non-suitability for the oral test - also considering possible repercussions on career opportunities or future employment in different contexts - does not seem to be able to determine consequences on the relational and professional level of the interested parties. The mere dissemination of the name, accompanied by the..."

****Judgment of Unsuitability**** does not seem to produce an unjustified and disproportionate interference in the rights and freedoms of the interested parties;

- "the mere indication of 'unsuitability' serves the function of making public the decisions adopted by the examination committee, also in order to allow the interested parties to activate forms of protection of their rights and to control the legitimacy of the competitive or selective procedures. In the case at hand, therefore, only the relevant data has been disseminated, which does not exceed the pursuit of the public purpose";

- "the number of interested parties involved was 21, of which only 2 filed a complaint".

****3. Outcome of the Investigative Activity. The Applicable Legislation.****

Preliminarily, it is stated that this provision concerns exclusively the dissemination of personal data contained within the aforementioned intermediate ranking. Regarding the transmission to Dr. XX of the file containing personal data relating to her, yet named with the surname of the other complainant ("XX"), it must be considered that, in light of the statements made by the Entity, the complainants had "jointly submitted their requests to Estar and were therefore mutually aware of the request" and that, in any case, "the transmitted contents were correctly referred to the individual candidates." This circumstance highlights how both complainants were already mutually informed of each other's participation in the same selection procedure, also considering that they had jointly exercised the right of access to documents against the Entity, and it must therefore be concluded that, with respect to this issue, the conditions for holding the Entity liable do not exist.

That said, it is generally observed that the regulation on the protection of personal data provides that public entities, even when operating within the framework of competitive, selective, or otherwise evaluative procedures, preliminary to the establishment of an employment relationship, may process the personal data of the interested parties (art. 4, no. 1, of the Regulation) if the processing is necessary "to fulfill a legal obligation to which the data controller is subject" (consider specific obligations provided for by national legislation "for hiring purposes," arts. 6, par. 1, lett. c), 9, parr. 2, lett. b) and 4; 88 of the Regulation) or "for the performance of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller" (art. 6, par. 1, lett. c) and

e), of the Regulation and art. 2-ter of the Code). Such processing must, in any case, be based on Union or Member State law that must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or connected to the exercise of public powers vested in the data controller (cf. art. 6, par. 3, of the Regulation and 2-ter of the Code). National legislation has introduced more specific provisions to adapt the application of the rules of the Regulation, determining with greater precision specific requirements for processing, as well as other measures aimed at ensuring lawful and fair processing (art. 6, par. 2, of the Regulation) and, in this context, has provided that the legal basis provided for in art. 6, par. 3, lett. b), of the Regulation, is constituted exclusively by the normative sources indicated in art. 2-ter of the Code. The data controller is required to respect in all cases the principles regarding the protection of data (art. 5 of the Regulation).

****3.1. The Unlawful Dissemination of Personal Data of Participants in the Selection Procedure****

From the elements acquired and the facts emerged during the investigative activity, it has been established that ESTAR published on its institutional website an internal document related to the selection procedure “XX” containing an intermediate ranking in which, corresponding to the names of each candidate, the outcomes of the respective professional technical interviews were indicated through the terms “suitable” (with the attached specification of the score), “unsuitable” or “absent.” The document in question, according to what was established in the investigation and confirmed by the Entity, was initially made available within the specific page of the Entity's institutional website “until the publication of the final ranking as the concluding act of the procedure on XX” but was found online through general search engines until XX, the day on which, following the initiation of the investigation by the Authority, this content was definitively removed from the web.

In this regard, the regulatory provisions that generally establish the publicity of rankings for competitions and selective tests (cf., in particular, Presidential Decree of January 10, 1957, no. 3; as well as art. 15 et seq. of Presidential Decree of May 9, 1994, no. 487 “Regulation containing rules on access to employment in public administrations and the methods of conducting competitions, unique competitions, and other forms of hiring in public employment,” also following the amendments made by Presidential Decree of June 16, 2023, no. 82 and, more generally, on the publicity of recruitment procedures for personnel in public administrations, art. 35 of Legislative Decree of March 30, 2001, no. 165) serve the function of allowing the interested parties, participants in competitive or selective procedures, to activate forms of protection of their rights and to control the legitimacy of the action.

****Administrative.**** Based on the aforementioned regulatory framework, the publication of the ranking in the official bulletins of the respective entities (and on their institutional websites) was announced through a notice in the Official Gazette of the Republic, and from the date of the aforementioned publication, the term for any appeals commenced (see art. 15, paragraph 6 of the Presidential Decree of May 9, 1994, no. 487, in the text prior to the amendments made by Presidential Decree 82/2023 applicable to the case at hand, which currently instead provides that the publication takes place on the Single Recruitment Portal referred to in art. 35-ter of Legislative Decree of March 30, 2001, no. 165, and on the website of the concerned administration, and that from the date of such publication the terms for appeal commence).

The aforementioned regulations, however, stipulate that only the definitive rankings of the successful candidates in the competition are to be published, and not the results of the individual tests taken by the participants in the procedure containing the personal data of the candidates deemed suitable, unsuitable, or absent (cf. art. 15, paragraph 6, of the cited Presidential Decree).

The provisions regarding administrative transparency also provide specific publication obligations in the “Transparent Administration” section of the institutional website of the administrations. In fact, according to what is provided by Legislative Decree of March 14, 2013, no. 33, “without prejudice to other legal publicity obligations, public administrations publish the competition announcements for the recruitment, for any reason, of personnel at the administration, as well as the evaluation criteria of the Commission, the test papers, and the final rankings, updated with any movement of the suitable candidates who are not winners. Public administrations publish and keep constantly updated the data

referred to in paragraph 1” (art. 19, paragraphs 1 and 2; see Memorandum of the President of the Authority for the Protection of Personal Data on the draft budget law 2020, Commission 5°, Budget, of the Senate of the Republic, of November 12, 2019, doc. web 9184376; cf., lastly, provision of April 11, 2024, no. 235, doc. web no. 10019523 as well as provisions of March 23, 2023, no. 83, doc. web no. 9888096, and April 28, 2022, no. 151, doc. web no. 9778996, and the previous provisions referenced therein, including, in particular, provision of November 25, 2021, no. 407, doc. web no. 9732406).

These provisions define, from the perspective of data protection, the scope of permitted processing and constitute its legal basis by establishing limits, conditions, and prerequisites for the online publication of personal data in the context of competitive and selective procedures. In this regard, the Authority has, over time, provided specific indications to public administrations regarding the precautions to be adopted for the dissemination of personal data on the Internet for the purposes of transparency and publicity of administrative action, particularly in 2014, with the “Guidelines on the processing of personal data, including those contained in administrative acts and documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” (provision no. 243 of May 15, 2014, doc. web no. 3134436, parts I and II, specifically par. 3.b).

In this context, the fact that the Entity has failed to disclose the score obtained by the unsuitable candidates is therefore not relevant, since, in light of the aforementioned regulatory framework, which provides solely for the publication of the final rankings and not also for the intermediate acts (such as the ranking subject to publication by ESTAR in the context of the matter at hand, although it concerns the only test of the competition provided for by the announcement), it is the very dissemination of the personal data contained in the intermediate act that is itself devoid of an adequate legal basis. This is regardless of the positive or negative outcome achieved by each candidate following the tests taken, as well as independently of the adoption of measures intended to implement the principle of minimization concerning the data relating to the unsuitability of candidates who did not pass (such as, in this case, the omission of the indication of the score obtained by such candidates, see note of XX). The aforementioned measures, in fact, are not sufficient to remedy the lack of legal basis identifiable in this case.

It is also noted, in this regard, that, contrary to what the Entity claims, for which “the indication of 'unsuitability' [...] allows the interested parties to activate forms of protection of their rights and to control the legitimacy of the competitive or selective procedures” (cf. note of XX), the dissemination of the names of the candidates deemed unsuitable, carried out moreover through the publication of an intra-procedural act, cannot be considered justified by the need to guarantee them the activation of the most appropriate forms of protection of their rights. This is because, in light of the aforementioned regulatory framework, the term for any appeal indeed commences from the date of publication of the final ranking, while specific protection instruments provided by the legal system remain in any case that allow for the knowledge, upon the occurrence of the relevant prerequisites, of administrative acts (cf., in particular, arts. 22 et seq., Law of August 7, 1990, no. 241; art. 5, paragraph 2, of Legislative Decree no. 14 of March 14, 2013, no. 33).

Nor can it be invoked, as the Entity claims to justify the legality of the publication in question (see note of XX), the fact that the test to which the aforementioned ranking refers “is characterized by being open to the public,” since the free accessibility to the premises where the oral tests of the competition take place, in accordance with the principles of adequate publicity of the selection.

and impartiality, cost-effectiveness, and speed of the related procedures (art. 35, paragraph 3, letter a), of Legislative Decree 165/2001), does not legitimize the dissemination of any act or document related to the procedure or otherwise prepared by the examination committee (see, similarly, also paragraph 6.1 of the “Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector,” provision of June 14, 2007, no. 161, web document no. 1417809).

Lastly, without prejudice to the evaluations already expressed regarding the absence of an appropriate legal basis for the dissemination of the data contained in the interim ranking bearing the summary judgments, the scores attributed to the eligible candidates, and the information regarding any absence

from the test, it is noted that, although the Entity has deemed that the online dissemination of information regarding the “ineligibility” of certain participants does not produce “an unjustified and disproportionate interference in their rights and freedoms,” such processing has, however, effectively allowed anyone to consult the negative evaluations expressed by the examination committee regarding the professional qualities and aptitudes, with possible prejudicial effects for the interested parties.

For the reasons stated above, the publication by ESTAR on its institutional website of the interim ranking bearing the results of the professional technical interviews of the candidates, indicating, next to each name, the terms “eligible” (with the attached specification of the score), “ineligible,” or “absent,” has resulted in the dissemination of the personal data of the complainants and other participants in the procedure lacking an appropriate legal basis, in violation of articles 5 and 6 of the Regulation, as well as article 2-ter of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by article 11 of the Regulation of the Guarantor no. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the illegality of the processing of personal data carried out by ESTAR is noted for having disseminated online the personal data of the complainants and other participants in the aforementioned procedure, by publishing on its institutional website the interim ranking bearing the results of the related professional technical interviews, indicating, next to the names of each candidate, the terms “eligible” (with the attached specification of the score), “ineligible,” or “absent,” in the absence of an appropriate legal basis, in violation of articles 5 and 6 of the Regulation and article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are all subject to the sanction provided for by article 83, paragraph 5, of the Regulation, as also referred to by article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, since the Entity has removed the aforementioned ranking from its institutional website on date XX, the conditions for the adoption of further corrective measures under article 58, paragraph 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (articles 58, paragraph 2, letter i, and 83 of the Regulation; article 166, paragraph 7, of the Code).

The Guarantor, pursuant to articles 58, paragraph 2, letter i) and 83 of the Regulation as well as article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to article 166, paragraph 7, of the Code” (article 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019).

In this regard, considering article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount

taking into due account the elements provided for by article 83, paragraph 2, of the Regulation.

Considering that: the ranking has been removed from the webpage of the selection procedure in question since the date of publication of the final ranking but has been found online through search engines...

**of generalist research for a particularly long period and, in particular, until the XX, the day on which the aforementioned content was definitively removed from the web (see art. 83, par. 2, lett. a), of the Regulation); the publication did not concern personal data belonging to the special categories referred to in art. 9 of the Regulation or data relating to criminal convictions or offenses; moreover, the Entity has from the outset taken care to implement measures aimed at limiting the dissemination of information regarding unsuitable candidates, omitting to specify the score obtained (see art. 83, par. 2, lett. g), of the Regulation), it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the fine, the following mitigating circumstances should be taken into account: the Entity has represented that it has implemented certain technical and organizational measures in order to ensure, in this area, compliance with the regulations on personal data protection and aimed in particular at reducing the risk of similar violations occurring in the future (see note of XX cited; art. 83, par. 2, lett. c) and k), of the Regulation); there are no previous relevant violations committed by the data controller, having the same nature as those established in relation to the complaint facts, or previous measures referred to in art. 58 of the Regulation (art. 83, par. 2, lett. e), of the Regulation); the Entity has offered good cooperation with the Authority during the investigation, having also represented that it acted promptly for the removal of the content from the web (see note of XX cited; art. 83, par. 2, lett. f), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary fine at €5,000 (five thousand) for the violation of arts. 5 and 6 of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the specific circumstance that the aforementioned ranking contained personal data of a significant number of interested parties (specifically, 21) and that, in particular, it was subject to online publication for an extended period, having been removed only on XX.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to arts. 57, par. 1, lett. f) and 83, of the Regulation, finds the unlawfulness of the processing carried out by ESTAR for violation of arts. 5 and 6 of the Regulation, as well as 2-ter of the Code, as stated in the motivation;

ORDERS

the Regional Technical Administrative Support Entity, represented by the legal representative pro tempore, with registered office at Via Di San Salvi, 12 Palazzina 14 - 50125 Florence (FI), Tax Code 0648554048, to pay the sum of €5,000 (five thousand) as an administrative monetary sanction for the violations indicated in the motivation;

ENJOINS

the aforementioned Entity, in the event of failure to resolve the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of Law no. 689/1981. It is noted that, pursuant to art.

166, paragraph 8, of the Code, the offender retains the option to resolve the dispute by payment - always according to the methods indicated in the annex - of an amount equal to half of the imposed sanction within the term referred to in art. 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

- a) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Guarantor's website;
- b) pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the Authority's website;
- c) pursuant to art. 17 of the Regulation of the Guarantor no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, October 17, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei